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Our Ref. TA/GC/202/2018
Chief Executive Officer,
Britam Insurance (T) Ltd,
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Ohio Street/Garden Avenue,
P.O.Box 75433,
Dar es Salaam.

22nd October 2018



**RE: IN THE RESIDENT MAGISTRATE'S COURT OF DAR ES SALAAM
AT KISUTU**

CIVIL CASE NO. 55 OF 2016

HABIB SALEHE MAHADHY.....PLAINTIFF

VERSUS

**SUZ ZHENG HUA.....1ST DEFENDANT
REAL INSURANCE TANZANIA LTD.....2ND DEFENDANT**

Reference is made to the above captioned subject matter in which we were representing your organization. The Judgment in respect of this matter was delivered on **13th September, 2018** before **Honourable Nongwa, SRM.**

In the said decision the Court while disallowed the claim of the sum of **Tshs. 88,223,000/=** as a loss of earnings. It proceeded however to enter the Judgment in favour of the plaintiff as hereunder:-

1. The sum of **Tshs. 50,000,000/=** as the compensation for pain and suffering.
2. The sum of **Tshs. 1,831,000/=** being the funeral expenses.
3. The costs of the suit.

However, despite the fact that the quantum is on the higher, there are other grounds which can be advanced to challenge the Judgment on appeal. Under the circumstances, please advise if we can proceed with appeal process.

Our final Fee Note for the same is attached for your payment in good time.

Kindly be so advised.

Sincerely Yours,
Tanscar Attorneys

O.E.Msechu
Managing Partner

Final
Civil Case No. 55 of 2016

Venance
- f/x

23/10/18



IN THE RESIDENT'S MAGISTRATE COURT OF DAR ES SALAAM
AT KISUTU

CIVIL CASE NO. 55 OF 2016

HABIB SALEHE MAHADHY PLAINTIFF

(Administrator of the estate of Ally Mahadhy Salele)

VERSUS

SUN ZHENG HUA 1ST DEFENDANT

REAL INSURANCE TANZANIA LIMITED ... 2ND DEFENDANT

Date of Last Order ... 16/01/2018

Date of Judgment

JUDGMENT

The Plaintiff named above filed this case against the two Defendants jointly and severally for general damages for death of Ally Mahadhy Salehe (the deceases) arising from the accident that was cause by the defendants plus costs of the suit.

It was on the 27th December, 2011 at about 16 hours near Oysterbay Police Station Kinondoni District, when the said Ally Mahadhy Salehe life was terminated by the knock from the motor vehicle with registration number T.703 BWY, make Toyota Corolla that was being driven carelessly by the 1st Defendant, the said motor vehicle had been under insurance policy cover by the 2nd Defendant.

The 1st Defendant was then charged and convicted of reckless driving traffic case No. 77 of 2012 at Kinondoni District Court.



The plaintiff now, Prays for judgment and decree against the Defendants as follows;

- (a) Payment of specific damages of Tshs. 88,231,000/=
- (b) Payment of general damages as shall be assessed by the court
- (c) Interest on the amount in (a) above
- (d) Costs
- (e) Any other relief that this court may deem proper to grant

From the pleadings, the plaintiff narrated the particulars of specific damages to be; that the deceased was killed while still young of 36 years, and was a businessman dealing with meat roasting to Oysterbay Beach in Dar es salaam.

The plaintiff narrated further that the deceased was earning an average of TZs 10,000/= per day as net profit, therefore for a month he earned TZS 300,000/= making on annual income of TZs 3,600,000/=.

That the deceased was expected to work for another 24 years to reach retirement age, thus Tshs. 1,800,000/= per annum times 24 years making TZS 86,400,000/= and burial expenses amounted to TZS 1,831,000/= thus total amount being TZS 88,231,000/=.

On general damages the plaintiff claimed that he untimely death of the son has caused him mental anguish, psychological hardship and misery for the rest of this life.

That he, the father has suffered torture and embarrassments while following up the matter, the deceased being a right hand man to him thus being of great assistance.

In terms of advice and financed support.

The plaintiff also lamented that all his investments and proper up bringing of the deceased and expectation of being taken care by the deceased when he becomes old, had been shattered down completely.

On the defence side, the 2nd Defendant disputed most of the facts, alleging that of the amount claimed is based on estimations and not actual loss suffered.

At the hearing the two sides had one witness each side and the following issues were for determination;

1. Whether at the time of accident the motor vehicle which caused the accident had valid insurance policy from the 2nd Defendant
2. Whether the amount claimed is reasonable and justifiable
3. What are the relief(s) each party is entitled.

As regards to the first issue, the same was not disputed because it was proved by cover note tendered in court as exhibit P4 and at the hearing, the Defence witness Venance s/o Minja did not dispute that exhibit P4 was the insurance cover note in issue. Defence witness argued much on amount claimed and justification as such the 1st issue is affirmatively answered.

The 2nd issue is on reasonability and justification of the amount claimed.

PW1 the only witness for plaintiff side, Habib Swalehe Mahadhi aged 72 years the father of the deceased person, testified that his son who died at the age of 36 years, had more years ahead to live and was doing business as "Matchinga" selling roasted meat and "urojo" along Oysterbay beach and was earning ten thousand per day, thus 300,000/= per month and consequently 3,600,000/= per annum, that for the rest of his life, he was



to earn Tshs. 86,400,000/= the plaintiff tendered no exhibit to that effect, however, he tendered receipts for burial expenses exhibit P6 with total amount of Tshs. 1,831,000/=.

As for the loss, he claimed to be paid Tshs. 100,000,000/=.

On cross examination, PW admitted that the deceased had no TIN number for business, had no fixed business place no business licence as such there was no exhibit.

This issue of specific damages justification made the defence remind the court that clearly there was no evidence to prove actual earning of the deceased or actual loss the parent has got because the deceased was only earning for his survivor not for his father, otherwise no proof that the deceased was doing the said business.

It is apparently clear that the plaintiff has got a loss, losing his son at the age of 36, is a loss that can not be quantified, as no amount can ever compensate the loss of human life, however specific damages have to be proved as the plaintiff has done in respect of burial expenses.

As for general damages, that is in the courts discretion and no need of strict proof thereof.

It is therefore only the Burial expenses that has been proved by the plaintiff and therefore being justifiable, the rest concerning deceased income has not been proved.

As submitted by the plaintiff in his final submission, funeral expenses are awardable under section 8 of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Act.

As to the reliefs, referring to the case of TANGAMANO TRANSPORT SERVICE LIMITED VERSUS ELIAS RAYMOND AND ANOTHER, COMMERCIAL CASE NO. 50 of 2004 (unreported) that the measure of damages, in law is "restitutio in integrum" that is the Law will endeavour so far as money can do it to put the party who has been injured or who has suffered in the same position as he would have been if he had not sustained the wrong for which he is now getting his reparation.

It is obvious that no amount of money can compensate the loss of human life and the court can only order an amount that can help wipe tears of the plaintiff for the loss of his sons life, together with specific damages proved burial expenses.

This court therefore orders as follows;-

- (a) The Defendants pay the plaintiff specific damages (burial & funeral expenses) Tshs. 1,831,000/=.
- (b) The Defendants pay the plaintiff general damages at the tune of Tshs. 50,000,000/= (fifty million shillings only).
- (c) Interest rate of 12% on (a) above from the date of delivery of this Judgment to the date of full payment.
- (d) Costs of the suit be born by the Defendants.

Signed: Hon. V. M. Nongwa, SRM

13/09/2019.

MAGISTRATES COURT
KISUTU DAR ES SALAAM
I hereby certify that the foregoing is
a true and correct copy of the original
[Signature]
Principal/Senior/Resident Magistrate
Date: 10/10/18 20



